

**3. 9:00 AM CASE NUMBER: C24-03270**  
**CASE NAME: TANIA MARKER VS. STATE OF CALIFORNIA HEALTH AND HUMAN SERVICES AGENCY**  
**HEARING ON DEMURRER TO: TO 3RD AMENDED PETITION**  
**FILED BY: STATE OF CALIFORNIA HEALTH AND HUMAN SERVICES AGENCY**  
**\*TENTATIVE RULING:\***

Before the Court is a demurrer to Tania Marker's Third Amended Complaint, filed by Michelle Baass, in her official capacity as Director of the California Department of Health Care Services, and the California Health and Human Services Agency.

This hearing is CONTINUED to October 12, 2026 at 9:00 a.m. in this Department. Code of Civil Procedure section 430.41, subdivision (a) states:

Before filing a demurrer pursuant to this chapter, the demurring party shall meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer. *If an amended complaint, cross-complaint, or answer is filed, the responding party shall meet and confer again* with the party who filed the amended pleading before filing a demurrer to the amended pleading.

(Code Civ. Proc., § 430.41 (a), emphasis added.)

Moving defendants have failed to show they complied with the above with respect to the Third Amended Complaint, the subject of the present demurrer. It appears such efforts were made in the past, resulting in a stipulation filed on November 19, 2025 to allow the filing of the present complaint, but the effort was not repeated following the amended pleading. This does not meet the statutory requirements.

This matter is continued so that the parties can engage in a good faith meet and confer process that complies with the above-mentioned statutory requirement. Defendants shall meet and confer with petitioner, as required, and file a declaration regarding compliance by October 5th. If the parties reach an agreement about any of the matters raised in the motion, or agree to stipulate to an amended petition, the declaration shall include a description of these matters.

**4. 9:00 AM CASE NUMBER: C24-03270**  
**CASE NAME: TANIA MARKER VS. STATE OF CALIFORNIA HEALTH AND HUMAN SERVICES AGENCY**  
**HEARING ON DEMURRER TO: 3RD AMENDED PETITION**  
**FILED BY: MAXIMUS, INC.**  
**\*TENTATIVE RULING:\***

Before the Court is a demurrer to Tania Marker's Third Amended Complaint, filed by the "real party in interest," Maximus, Inc. (erroneously sued as Maximus Federal Services). Maximus cites Code of Civil Procedure, § 430.10, subdivisions (a) and (d)-(f). The demurrer is **SUSTAINED without leave to amend** because while petitioner is not necessarily precluded from seeking another form of relief, she cannot state facts constituting a cause of action for administrative mandate against Maximus, as discussed below.

Maximus's demurrer points out that the only cause of action petitioner is seeking is a writ of

mandate to correct an allegedly wrongful denial of her Medical Exemption Request, yet her verified allegations concede that Maximus is not a government administrative body responsible for the challenged decision.

A petition for writ of mandate must name the real party in interest, who thereafter has a right to notice and to be heard before a court issues a writ. (*Sonoma County Nuclear Free Zone v. Superior Court* (1987) 189 Cal.App.3d 167, 173, citations omitted.) “Real party in interest” has been generally defined as “any person or entity whose interest will be directly affected by the proceeding. (*Id.* at 173-174, citations omitted.)

The California Welfare and Institutions Code vests the Department of Health Care Services with authority over the administrative hearing process for Medi-Cal beneficiaries and the TAC concedes that “Maximus Federal Services is DHCS’s contractor and responsible for MER processing.”

Maximus correctly argues that government contractors, like Maximus, are not “real parties in interest” simply based on their being hired to manage a state-mandated program. (See *Hayes v. State Dept. of Developmental Services* (2006) 138 Cal.App.4th 1523, 1532 [where government agency holds power to set aside the decision made by their hearing officer / representative, agency could direct its representative to enter a new and different decision consistent with the trial court's ruling so a petitioner can be accorded complete relief without the contractor responsible for administering the hearing].) Maximus is not alleged to hold any particular interest or stake in the outcome of the administrative decision being reviewed.

Maximus’s demurrer to the writ is supported by petitioner’s own disaffirmance of any allegation that Maximus was the final decisionmaker. (Memorandum of Points and Authorities in Support of Opposition, 13:24-14:1.) The demurrer is further supported by the California Department of Health Care Services (apparently the correctly-named government entity), which requests that Maximus be dismissed as an improperly-named party. (Memorandum of Points and Authorities in Support of Demurrer, filed April 27, 2026, 21:16-18.)

**5. 9:00 AM CASE NUMBER: C24-03270**  
**CASE NAME: TANIA MARKER VS. STATE OF CALIFORNIA HEALTH AND HUMAN SERVICES AGENCY**  
**HEARING IN RE: JOINDER IN DEMURRER INITIALLY FILED BY CO-RESPONDENT CALIFORNIA**  
**DEPARTMENT OF HEALTH CARE SERVICES ON APRIL 27, 2026**  
**FILED BY: CALIFORNIA DEPARTMENT OF SOCIAL SERVICES**

**\*TENTATIVE RULING:\***

CONTINUED. Please see Line 3.

**6. 9:00 AM CASE NUMBER: C24-03270**  
**CASE NAME: TANIA MARKER VS. STATE OF CALIFORNIA HEALTH AND HUMAN SERVICES AGENCY**  
**HEARING IN RE: JOINDER IN RESPONDENTS BAAS AND CALIFORNIA DEPT. OF HEALTH CARE**  
**SERVICES 09/21/26 DEMURRER**  
**FILED BY: MAXIMUS, INC.**

**\*TENTATIVE RULING:\***

DENIED as moot. Please see Line 4.